

VBMS-Rating: Favorable Findings Job Aid

This job aid contains fictitious Veteran information on various images for training purposes
Last updated April 13, 2020

Favorable Findings

OVERVIEW

A favorable finding is a determination of fact, based on applicable laws and regulations, made by the adjudicator on an issue under review. Favorable findings should relate to a material element that would be required to grant the benefit sought.

VBMS has incorporated the ability for users to add, edit, and delete favorable findings, to include free text information, for any issue that is created for a claim in the Rating application.

Documenting Favorable Findings

Step 1: From the *Disability Decision Information* screen, select the necessary information from the drop-down menus and continue by selecting Next.

Step 2: Once all Decision screens are complete, the *Facts*, *Favorable Findings*, *Reference Laws* and *Analysis* tabs will appear under the *Issue Management* tab.

Step 3: Within the Favorable Findings tab, users can add, edit, and delete favorable findings, to include free text information, for any issue that is created for a claim in the Rating application. Each favorable finding, to include free text information, must be added to the Rating Narrative.

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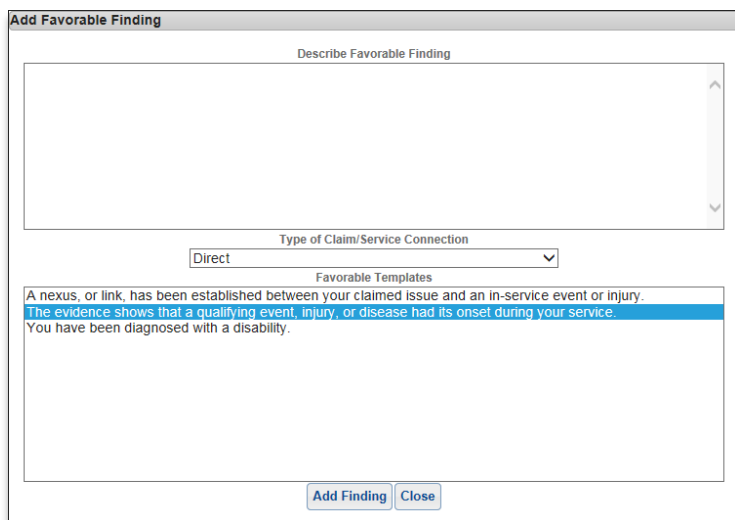
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Step 4: Select the *Add Favorable Finding* button to input favorable findings under the Favorable Findings tab.



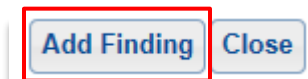
The screenshot shows a web interface with three tabs: 'Facts', 'Favorable Findings', and 'References'. The 'Favorable Findings' tab is active. Below the tabs is a section titled 'Favorable Findings' with a large text area and a button labeled 'Add Favorable Finding' at the bottom, which is highlighted with a red rectangular box.

Step 5: Select the applicable favorable finding from the *Favorable Templates* drop-down menu. Users also have the option to enter free text in the *Describe Favorable Finding* text box for a favorable finding that may not be available from the drop-down menu.



The screenshot shows a dialog box titled 'Add Favorable Finding'. It has a section 'Describe Favorable Finding' with a large text area. Below this is a dropdown menu for 'Type of Claim/Service Connection' set to 'Direct'. Underneath is a section 'Favorable Templates' with a list of templates. The first template is selected and highlighted: 'A nexus, or link, has been established between your claimed issue and an in-service event or injury. The evidence shows that a qualifying event, injury, or disease had its onset during your service. You have been diagnosed with a disability.' At the bottom of the dialog are 'Add Finding' and 'Close' buttons. The 'Add Finding' button is highlighted with a red rectangular box.

Step 6: Click the *Add Finding* button to add the favorable finding to the rating narrative.



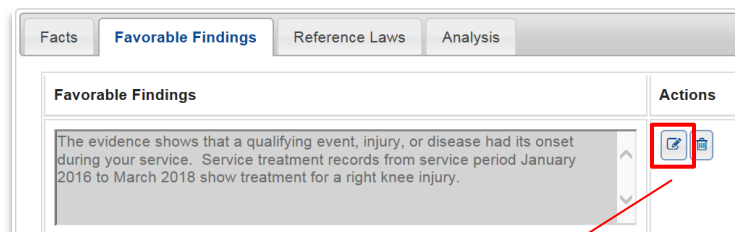
The screenshot shows two buttons: 'Add Finding' and 'Close'. The 'Add Finding' button is highlighted with a red rectangular box.

Editing a Favorable Finding

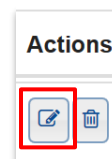
Prior to finalizing a rating decision, users can edit favorable findings when free text is required (e.g. “A stressor is conceded based on <insert free text>.”) or when a typo may be identified.

In addition, favorable findings must be specific enough so that a claimant, upon reading the notification and rating decision, will be able to determine what evidence was used to make the finding. Users must edit a favorable finding to address the specific evidence that supports the favorable finding.

Step 7: To edit a favorable finding, select the *pen and paper icon* under the *Actions* column.



The screenshot shows a table with two columns: 'Favorable Findings' and 'Actions'. The 'Favorable Findings' column contains a list of findings. The first finding is selected and highlighted: 'The evidence shows that a qualifying event, injury, or disease had its onset during your service. Service treatment records from service period January 2016 to March 2018 show treatment for a right knee injury.' The 'Actions' column for this finding shows two icons: a 'pen and paper' icon and a trash can icon. The 'pen and paper' icon is highlighted with a red rectangular box.



The screenshot shows a small window titled 'Actions' with two icons: a 'pen and paper' icon and a trash can icon. The 'pen and paper' icon is highlighted with a red rectangular box.

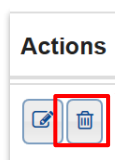
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Deleting a Favorable Finding

Step 8: To delete a favorable finding, select the *trashcan icon* under the *Actions* column.

Facts	Favorable Findings	Reference Laws	Analysis
	The evidence shows that a qualifying event, injury, or disease had its onset during your service. Service treatment records from service period January 2016 to March 2018 show treatment for a right knee injury.		☐ ☐
	You have been diagnosed with a disability.		☐ ☐



Adding Favorable Findings to Rating Narrative

Step 9: Return to the *Analysis* tab.

Facts	Favorable Findings	Reference Laws	Analysis
Generated Text:			

Step 10: Select *Append* to add the favorable finding to the rating narrative.

Reasons for Decision: **Append** Alternative Text Builder

An evaluation of 10 percent is granted if the record shows recurrent subluxation or lateral instability of the knee which is slight. A higher evaluation of 20 percent is not warranted unless there is evidence of moderate subluxation or lateral instability of the knee. (38 CFR 4.71a)

Favorable Findings identified in this decision:

The evidence shows that a qualifying event, injury, or disease had its onset during your service. Service treatment records from service period January 2016 to March 2018 show treatment for a right knee injury.

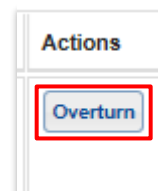
You have been diagnosed with a disability.

Overturning Favorable Findings

VBMS-R allows for a user to overturn a favorable finding previously established by a prior rating decision.

Step 1: To overturn a favorable finding, select the *Overturn* button from the *Favorable Findings* tab.

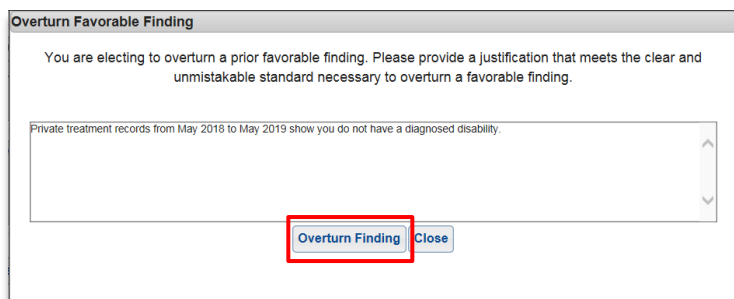
Facts	Favorable Findings	Reference Laws	Analysis
	The evidence shows that a qualifying event, injury, or disease had its onset during your service. Service treatment records from service period January 2016 to March 2018 show treatment for a right knee injury.		☐ ☐ Overturn
	You have been diagnosed with a disability.		☐ ☐ Overturn



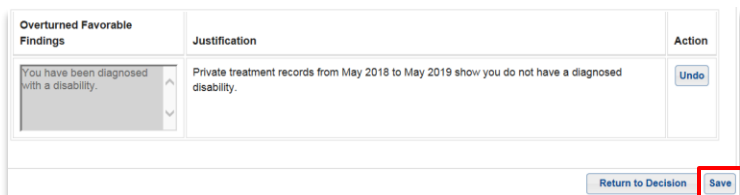
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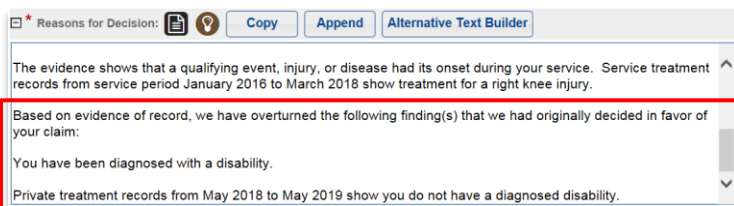
Step 2: When selecting the overturn option, a pop-up will display prompting the user to enter a justification. Enter the justification, and click the *Overturn Finding* button.



Step 3: Click *Save*.



Step 4: Return to the *Analysis* tab, and click *Append*. The overturn justification will display in the *Reasons for Decision* text box and be denoted by the text “Based on evidence of record, we have overturned the following finding(s) that we had originally decided in favor of your claim:”



Favorable Findings Related Errors – Glossary Text

If favorable findings are improper or missing, a new rating decision addressing only those issues that did not include the proper or missing information must be generated and finalized with a notification letter.

Also, Compensation Service incorporated the below paragraphs into the VBMS-R National Glossary. Note the reference to [38 CFR 3.103]

Providing favorable findings: The purpose of this rating decision is to explain the favorable findings associated with your claim for _(issue) but were not included in our previous decision of __ (date). [38 CFR 3.103]

Note: Only the issue(s) identified as deficient should be addressed in the new rating document.